

Bhagwati Prasad v. State of U.P.

Allahabad High Court · Division Bench · 23 March 2017 · Writ - C No. 12136 of 2017 · **Writ dismissed; petitioner relegated to Supply Code clause 6.14.**

HEADNOTE

A writ seeking only that installments be fixed for deposit of an electricity bill is not entertained where the consumer has a statutory alternative remedy under clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. The Division Bench declined to hear the petition and dismissed it.

FACTUAL SUMMARY

Bhagwati Prasad invoked the Allahabad High Court's writ jurisdiction against the State of U.P. and the electricity Corporation. At the hearing the only submission pressed was that installments be fixed for deposit of his electricity bill. Counsel for the respondent-Corporation submitted that the petitioner could take the statutory alternative remedy under clause 6.14 of the Electricity Supply Code, 2005. The Division Bench did not examine the bill or the installment request on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

writ-alternative-remedy-bill-installments

HOLDING

Where the only relief pressed in a writ petition is that installments be fixed for deposit of an electricity bill, the consumer has a statutory alternative remedy under clause 6.14 of the Electricity Supply Code, 2005, and the High Court will decline to entertain the petition. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALLMENTS SHOULD BE FIXED FOR DEPOSIT OF THE ELECTRICITY BILL

Writ declined; petitioner left to clause 6.14. ¶ 1